

23PSCV00512 23PSCV00512

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Case Number: 23PSCV00512 Hearing Date: July 20, 2026 Dept: H

Carbajal v. Benihana, Case No. 23PSCV00512

ORDER ON MOTION TO ENFORCE SETTLEMENT

Plaintiff Kela Carbajal's Motion
to Enforce Settlement and for Entry of Judgement Pursuant to Code of
Civil Procedure § 664.6 is DENIED.

Background

Plaintiff

Kela Carbajal ("Plaintiff") alleges that she
sustained injuries and damages in a January 5, 2023 slip and fall on a walkway
located at 17877 Gale Avenue in the City of Industry ("premises").

On February 23, 2023, Plaintiff filed a complaint,
asserting causes of action against Benihana, Inc. ("Defendant") and Does 1-100
for: (1) Negligence and (2) Premises Liability.

On February 10, 2026, an "Order Re: Stipulation to
Binding Arbitration" was entered.

An Order to Show Cause Re: Dismissal is set for
August 31, 2026.

Legal Standard

"If

parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement . . ." (Code Civ. Proc., 664.6, subd. (a).)

"For

purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1) The party.

(2) An

attorney who represents the party. . ." (Code Civ. Proc., 664.6, subd. (b).)

Discussion

Plaintiff

moves the Court for an order enforcing the parties' settlement and entering judgment in its favor and against Defendant in the amount of the binding arbitration award of \$386,785.00, together with prejudgment interest of \$7,417.79.

On or

about February 6, 2026, the parties executed and filed a "Stipulation for Binding Arbitration" ("Stipulation") which provided, in relevant part, as follows:

"IT IS

HEREBY STIPULATED by and between Plaintiff Kela Carbajal and Defendant Benihana, Inc. ("Parties"), through their respective counsel of record, the following:

1. This above-entitled action be submitted to binding arbitration. . .

5. The parties stipulate the Hon.

Jacqueline Connor (Ret.) shall serve as arbitrator. . . Judge Connor is empowered, pursuant to Code of Civil Procedure § 638 to issue a binding

statement of decision and arbitration award. The court will retain jurisdiction to enforce the award;

6.

The award of the arbitrator shall not be submitted to the court to be reduced to judgment in this action; . . .

16.

. . . The parties further recognize that this agreement to binding arbitration constitutes a settlement agreement and is subject to enforcement pursuant to California Code of Civil Procedure § 664.6. . .

18.

The court shall retain jurisdiction and may enforce the terms of this stipulation pursuant to Code of Civil Procedure § 664.6. . .”

(Ghermezian

Decl., ¶ 5, Exh. A).

On

February 10, 2026, an “Order Re: Stipulation to Binding Arbitration” was entered (“Order”), wherein the parties were ordered into binding arbitration pursuant to the Stipulation. The Order also provided that “the Superior Court shall retain jurisdiction to enforce any settlement or arbitration award pursuant to Code of Civil Procedure § 664.6 or § 1285, et seq., as appropriate.”

The

motion is denied. Plaintiff seeks enforcement of the “parties’ settlement.” Here, the “settlement” was the parties’ agreement to submit the matter to binding arbitration pursuant to certain enumerated conditions. The briefing reflects that the parties, in fact, submitted to binding arbitration and that an award was made. The Court cannot find language in the Stipulation which purportedly provides that “the award constitutes a settlement agreement enforceable under Code of Civil Procedure section 664.6 . . .”

That said, in the interest in

streamlining the case and avoiding further motion practice regarding the arbitrator’s award, at the time of hearing, the Court will hear from Defendant’s counsel as to when payment will be made.